

Appeal or Reassess? Know Which One You Need

PLAIN-LANGUAGE GUIDE · THE ALBERTA DISABILITY SYSTEM BREAKDOWN · JUNE 2026

Two different routes, two different clocks. You are allowed to use both. Here is how to tell which one your situation needs.

There is a lot of confusing advice going around about appealing your AISH letter. Some of it is right, and some of it mixes up two different things. Here is the difference, in plain language.

First, the part that calms the panic: you are still on AISH until July 2, 2026. The letters going out now tell you which program you will be on. They are notifications. Nothing has been cut yet, and you are still getting your full amount.

ROUTE 1 — REASSESS	ROUTE 2 — APPEAL
USE THIS IF Your letter says you are being moved to ADAP and you want to stay on AISH.	USE THIS IF You want to challenge a decision about your benefits while the right is still live.
WHAT YOU DO Apply to be reassessed for AISH through the single combined AISH/ADAP application.	WHAT YOU DO Send a written Notice of Appeal to the Appeals Secretariat. It goes to the appeal panel.
WHEN Available whenever you choose after the move. It is not time-limited.	WHEN Under the AISH Act, section 10, within 30 days of being told of the decision and your right to appeal. The Minister can extend for a good reason. The right is in force until July 2, so file before the end of June.
DEADLINE None. You can use this route after July too.	FIRST Give AISH any new information before you file. Once you file, the panel looks only at what is already in your file.
COST The government covers one medical assessment.	COVERS A director's decision — a benefit reduced, refused, or stopped; an overpayment; a denied reassessment; a refusal to send you to the medical review panel.
NOTE This is where new medical evidence goes. Your doctor's letter needs to speak to permanence — why you cannot reliably sustain work.	

How to tell which one you need

Both doors are open to you right now, and they do different jobs. Use both where they fit.

Reassessment (Route 1) is your route to stay on AISH. It takes new medical evidence and has no deadline. It is your steady path no matter what.

Appeal (Route 2) challenges a decision while that right is still alive — and that right closes July 2. If your letter states a decision and gives you 30 days, the clock is already running, so act inside it. And even if your letter only names your program, you can still file before the end of June, to put your objection on the record while the right exists. Keep a right, or make them prove they took it.

One more thing — the move itself, and the clock

The government says moving you to ADAP is automatic, so there is nothing to appeal. We do not accept that. A letter that changes which program you are on, and how much you get, is a decision about you. Someone

decided you fit the lower program instead of AISH. If a person decided it, a person can be asked to answer for it.

The right to appeal an AISH decision is alive right now, while you are still on AISH — it is set out in the AISH Act, section 10. The new rules that remove the right to appeal this kind of decision do not start until July 2, 2026. So the one window to challenge this as an AISH decision is before July 2. After that day, the door the law still leaves open today is shut. A 30-day clock you were never told was running, inside a window that closes the day the new program begins, is a clock most people are set up to miss.

And look at who these letters are sent to. They go to people whose disabilities can affect reading, memory, focus, and keeping up with paperwork. The letters are written in dense, formal language, they call a benefit change “automatic,” and they say “no action is required.” Nothing in them tells you a window is open, or when it closes. A notice built for this community would say, in plain words, that an appeal window exists and the exact date it ends. These do the opposite. Whatever the reason, the effect is the same: the people least able to catch a hidden deadline are the ones most likely to lose it.

What to do before July 2

- 1. Ask in writing for a Notice of Decision:** who decided you go to ADAP instead of AISH, on what date, and under what section, with reasons. Send it to the office that issued your letter. Our companion guide, *Who Made the Determination?*, gives you the exact wording.
- 2. File your appeal before the end of June,** while the right is still in force — whether or not they have sent you a formal decision. Putting your objection on the record before the door closes is the point. If they turn you away citing a bar that is not yet in force, that refusal is your evidence.
- 3. To keep AISH, use the reassessment route (Route 1).** It has no deadline, so it is your steady path no matter what happens with the appeal.

Where to go

Appeals Secretariat (for an appeal): phone 780-427-2709 (toll-free dial 310-0000), email alss.appeals@gov.ab.ca, fax 780-422-1088, 2nd Floor, Agronomy Centre, 6903 116 Street NW, Edmonton, AB T6H 5Z2. Ask them to email, fax, or mail you the Notice of Appeal form.

Reassessment (to keep AISH): Alberta Supports Contact Centre 1-877-644-9992 — the AISH and assessment side, not the appeals line.

Office of the Advocate for Persons with Disabilities: toll free 1-800-272-8841, phone 780-422-1095, advocate.disability@gov.ab.ca. They help people navigate and access disability supports, though they cannot represent you at a hearing.

For free help: Legal Aid Alberta, Calgary Legal Guidance (which publishes a free self-representation guidebook for AISH appeals), and community legal clinics. The Alberta Ombudsman (1-888-455-2756) can look at procedural failures once you have tried to resolve things through the program.

This is general information, not legal advice.

Sources: Assured Income for the Severely Handicapped Act, s.10 (appeals). AISH General Regulation (AR 96/2026) and Applications and Appeals (Ministerial) Regulation (AR 87/2026), both in force July 2, 2026. Financial Statutes Amendment Act, 2025 (No. 2) (Bill 12), s.12.8. Government of Alberta — Alberta Disability Assistance Program (alberta.ca): reassessment available whenever clients choose, not time-limited, one covered medical assessment. AISH Policy Manual (Notice of Decision; Appealing a Decision). Office of the Advocate for Persons with Disabilities (alberta.ca).

The Alberta Disability System Breakdown — Advocate

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